

1. The Pro Hac Vice Application of Miranda Hulka is **GRANTED**.
2. The Other Pro Hac Vice Applications are **GRANTED**.
3. The hearing dates of December 7, 2026 and December 14, 2026 regarding the Other Pro Hac Vice Applications are **VACATED**.
4. The moving parties shall prepare and submit a single proposed form of order as to all of the applications for the Court's review and approval.

16. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

***HEARING ON MOTION IN RE: EXTEND THE 5-YEAR STATUTORY DEADLINE TO BRING A CASE TO TRIAL**

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing is **CONTINUED** to 9:00 a.m. on October 5, 2026.

17. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE THIRD AMENDED COMPLAINT**

FILED BY:

***TENTATIVE RULING**

On the Court's own motion, the hearing is **CONTINUED** to 9:00 a.m. on October 5, 2026.

18. 9:00 AM CASE NUMBER: N26-1361

CASE NAME: BAHR ANAYAT VS. DIRECTOR OF THE CALIFORNIA DEPARTMENT OF MOTOR VEHICLES

HEARING IN RE: PETITION FOR WRIT OF MANDATE OR OTHER EQUITABLE RELIEF AND STAY PENDENTE LITE

FILED BY: ANAYAT, BAHR

TENTATIVE RULING:

Petitioner Bahr Anayat ("Petitioner") filed a petition on August 3, 2026 (the "Petition"). The Petition was set for hearing on September 14, 2026.

Background

The Petition herein seeks a writ of mandate directing the DMV to vacate its administrative decision dated June 9, 2026.

No proof of service is on file herein.

Analysis

The writ Petition must be served in same manner as an ordinary civil action, i.e. under the rules for service of process. Code Civ. Proc. § 1107 ["However, when a writ of mandate is sought pursuant to the provisions of Section 1088.5, the action may be filed and served in the same manner as an ordinary

action under Part 2 (commencing with Section 307).”] (in pertinent part); see also *id.* at § 1088.5 (“In a trial court, if no alternative writ is sought, proof of service of a copy of the petition need not accompany the application for a writ at the time of filing, but proof of service of a copy of the filed petition must be lodged with the court prior to a hearing or any action by the court.”).

No proof of service has been filed, as noted above. Accordingly, the Court cannot take any action to adjudicate the Petition.

Disposition

The Court finds and orders as follows:

1. **PLAINTIFF TO APPEAR** to address service of the pending Petition.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF ALLIED WORLD SURPLUS LINES**
INSURANCE COMPANY'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE
FILED BY: ATHENS INSURANCE SERVICE, INC.
TENTATIVE RULING:

On March 17, 2026, defendant and cross-complainant Athens Program Insurance Services, LLC (“Athens”) filed a motion to compel (the “Motion to Compel Further Responses”) responses to discovery served upon plaintiff Allied World Surplus Lines Insurance Company (“Allied”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel Further Responses was set for hearing on September 14, 2026. The motion is opposed.

A joinder in the Motion to Compel Further Responses (the “Joinder”) was filed on April 16, 2026 by defendants, cross-complainants and cross-defendants Tyson & Mendes LLP, William Johnson, Robert Tyson, Patrick Mendes, Cayce Lynch, and Matthew Izu (the “T&M Defendants”).

Background

Athens served Allied with certain discovery requests on April 4, 2025, a first set of requests for production of documents consisting of four separate document production demands (the “Discovery Requests”). See Declaration of Michael T. Lee filed March 17, 2026 as part of the Motion to Compel (“Supporting Declaration”) ¶13 and **Exhibit 1** thereto. Several privileged logs were attached to the Supporting Declaration. *Id.* at **Exhibits 2 and 3**.

Notably, no copies of any written responses to the subject Discovery Requests were filed with the moving papers. See Motion to Compel Further Responses, including attached Supporting Declaration. Also important was the absence of any supporting Separate Statement at the time the Motion to Compel Further Responses was filed.